

b) Any event which makes it unlawful for the business of the Company to be carried on by the Members; or

c) Any other event causing dissolution of this Limited Liability Company under applicable state laws. (Decl. of Tae H. Lee [“Lee Decl.”], Ex. 1, § 1.3(a)-(c) [emphasis added].)

It then states: “Notwithstanding the provisions of ARTICLE 1.3, in the event of an occurrence described in ARTICLE 1.3(c), if there is at least one remaining Member, the remaining Member(s) shall have the right to continue the business of the Company.” (*Id.* at § 1.4.) Individual Defendants appear to argue that, based on section 1.4, there can never be a judicial dissolution of the LLC if at least one member wishes to continue the business. (Motion, pp. 5:18-6:2.) However, an operating agreement cannot waive a member’s right to judicial dissolution, and any portion of an agreement that is contrary to a provision of law is unlawful, void, and unenforceable. (*Meads, supra*, 114 Cal.App.5th at 39-40.) Because the provision on which Individual Defendants base their argument is unenforceable, they have not, and cannot, establish a probability of prevailing on the merits of their claim.

Irreparable Harm: The Individual Defendants do not provide evidence of immediate or irreparable harm. They claim that Plaintiffs’ failure to comply with the Operating Agreement “is adding to the bank’s insecurities” [Motion, pp. 10:26-11:7]. However, a party’s fear that something bad might happen in the future is not sufficient to justify a preliminary injunction. (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.) Furthermore, because the Individual Defendants have not shown they are likely to succeed on the merits of their claim, any potential harm is inadequate to support the requested relief. (See, *O’Connell, supra*, 141 Cal.App.4th at 1463, 1481.)

No Basis for a Mandatory Injunction: The requested relief—forcing Plaintiffs to sell their membership interest in the LLC—is mandatory and is exactly what the Cross-Complaint seeks. This type of relief is improper. (*Ibid.*) Therefore, even if the Petitioner could show it was likely to prevail on the merits (which it has not), it would still not be entitled to this relief.

3.

CASE #	CASE NAME	HEARING NAME
CVME2510477	CREDITORS ADJUSTMENT BUREAU, INC., VS BALLESTEROS	MOTION FOR ORDER THAT THE TRUTH OF MATTERS BE DEEMED ADMITTED

Tentative Ruling: Grant the motion and deem the matters admitted as to RFA Set One, and Grant \$972.75 sanctions.

4.

CASE #	CASE NAME	HEARING NAME
CVME2511978	TOM VS. MADRIGAL	EX PARTE TO DIMISS FOR FAILING TO AMEND THE COMPLAINT

Tentative Ruling: Grant Plaintiff five days to file the amended complaint. Grant \$1,824.35 sanctions for delay, payable within 30 days. Continue the CMC and OSC to November 17, 2026.